		The court concludes that the $331,250.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • $99,375.00 to plaintiff's counsel for plaintiff's attorneys' fees, reduced from the $110,416.66 requested; • $19,120.53 to plaintiff's counsel for plaintiff's litigation costs, as requested; • $5,000.00 to Plaintiff Rigoberto Hernandez as enhancement award, as requested; • $8,200.00 to Phoenix Settlement Administrators, the settlement administrator, as requested; and • $11,250.00 to the LWDA for its share of PAGA penalties, as requested. The total amount that will be payable to all class members and aggrieved employees, if they are paid the amount to which they are entitled pursuant to the judgment, is $188,304.47. The Final Accounting hearing is set for August 23, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar days before the hearing, Class Counsel and the Settlement Administrator shall submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number and value of any uncashed checks, and the status of any unresolved issues. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
10	30-2025-01508372 Bruyn vs. Aluma Medical Aesthetics P.C.	Defendants Aluma Medical Aesthetics P.C. ("Aluma"), Michael Lafkas, Lyndsay Hakker, and Tracy Dugan (collectively, "Defendants") Motion to Compel Arbitration and Stay of Action is **GRANTED**. IT IS ORDERED THAT Plaintiff's claims are compelled to arbitration, and this action is STAYED pending completion of arbitration. The court OVERRULES Plaintiff's objections to the Declaration of Defendant's counsel, Jonathan L. Gerber, as his discussion of the arbitration history of the parties is irrelevant to the court's ruling on this Motion.

		The court also OVERRULES Plaintiff's objections to the Declaration and Supplemental Declaration of Aluma's President, Michael Lafkas, as the objections primarily go to the weight and not the admissibility of the evidence. Further, the court permitted Plaintiff an opportunity to address Lafkas's supplemental declaration through a sur-reply. (ROA 90; ROA 93 [Plaintiff's sur-reply].) The court also OVERRULES Plaintiff's objections to the Declaration of Jeff Collins, as the objections primarily go to the weight and not the admissibility of the evidence. The court concludes that there exists a valid agreement to arbitrate the claims asserted by Plaintiff. (CCP § 1281.2.) Defendants present an Independent Contractor Agreement signed by Plaintiff on December 2, 2022 with provisions setting forth an arbitration agreement (the "Agreement"). (Lafkas Dec. ¶ 2, Ex. A § 16.) The Agreement states that "[Plaintiff] and [Aluma] agree to utilize binding individual arbitration as the sole and exclusive means to resolve all disputes that may arise out of or be related in any way to [Plaintiff's] relationship with [Aluma] . . ." (*Id.* § 16(A).) As a threshold matter, the court finds that the issues of the existence of an arbitration agreement and its validity and enforceability are for the court to decide, and not the arbitrator. The Agreement states: "Contractor and the Company agree to utilize binding individual arbitration as the sole and exclusive means to resolve all disputes that may arise out of or be related in any way to . . . the interpretation, performance or breach of this Agreement . . ." (Agreement § 16(A).) "[C]ourts presume that the parties intend courts, not arbitrators, to decide ... disputes about 'arbitrability,' ... such as 'whether the parties are bound by a given arbitration clause,' or 'whether an arbitration clause in a concededly binding contract applies to a particular type of controversy.'" (*Aanderud v. Superior Ct*. (2017) 13 Cal. App. 5th 880, 891.) "There are two prerequisites for a delegation clause to be effective." (*Id*. at 892.) "First, the language of the clause must be clear and unmistakable." (*Id*.) "Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability." (*Id*.) The court finds that the Agreement's language is not a clear and unmistakable delegation of issues to the arbitrator, as the issue of existence and enforceability of the Agreement is not necessarily one of "interpretation."

		The court further finds that under principles of equitable estoppel, individual Defendants, Michael Lafkas, Lindsay Hakker, and Tracy Dugan, may enforce the arbitration agreement against Plaintiff for claims asserted against them because Plaintiff's claims against individual Defendants are intertwined with the terms of the Agreement. "[A] nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are 'intimately founded in and intertwined' with the underlying contract obligations." (*JSM Tuscany, LLC v. Superior Ct.* (2011) 193 Cal. App. 4th 1222, 1237; *see also Goldman v. KPMG, LLP* (2009) 173 Cal. App. 4th 209, 220 ["[A] signatory to an agreement with an arbitration clause cannot 'have it both ways'; the signatory 'cannot, on the one hand, seek to hold the non-signatory liable pursuant to duties imposed by the agreement, which contains an arbitration provision, but, on the other hand, deny arbitration's applicability because the defendant is a non-signatory.'"].) Here, Plaintiff alleges that "Defendants Lafkas, Hakkar, and Dugan were each owners, officers, or managing agents of Aluma who directed, participated in, or ratified the unlawful conduct alleged herein. Plaintiff brings claims against them individually and in their official capacities . . ." (FAC ¶ 14.) Plaintiff cites to the terms of the Independent Contractor Agreement, complaining that the Agreement "permitted Aluma to deduct from her monthly revenue the costs of rent, medical assistants, malpractice insurance, credit card processing, electronic medical record fees, and other business expenses," conduct that Plaintiff claims is unlawful. (FAC ¶¶ 17-18.) The FAC further alleges that "[w]hen Plaintiff objected to the deductions and demanded records, Defendants retaliated by issuing threats, instructing staff to forge her signature on charts, and spreading defamatory statements." (*Id*. ¶ 20.) Accordingly, the claims against individual Defendants are intertwined with the terms of the Independent Contractor Agreement. The court further finds that the Federal Arbitration Act applies to this Agreement. Plaintiff argues that the FAA only applies if the parties agree that it would govern the parties' agreement, but fails to cite any authority for this proposition. Rather, the Federal Arbitration Act ("FAA," 9 USC § 1 *et seq*.) provides for enforcement of arbitration provisions in any contract "evidencing a transaction involving commerce." (9 USC § 2.) "A party seeking to enforce an arbitration agreement has the burden of

		showing FAA preemption." (*Lane v. Francis Cap. Mgmt. LLC* (2014) 224 Cal. App. 4th 676, 687.) "[A] petitioner seeking an order to compel arbitration must show that the subject matter of the agreement involves interstate commerce." (*Id*. at 687-688.) To show FAA preemption, the party must "establish the facts necessary to show the employment relationship involved interstate commerce." (*Id*. at 688.) A defendant's use of out-of-state materials in its business may be a factor in favor of finding that the FAA applies. The U.S. Supreme Court "ha[s] interpreted the term "involving commerce" in the FAA as the functional equivalent of the more familiar term "affecting commerce"—words of art that ordinarily signal the broadest permissible exercise of Congress' Commerce Clause power." (*Citizens Bank v. Alafabco, Inc.* (2003) 539 U.S. 52, 56 [finding that the FAA applied when "the restructured debt was secured by all of Alafabco's business assets, including its inventory of goods assembled from out-of-state parts and raw materials"].) "Congress' Commerce Clause power 'may be exercised in individual cases without showing any specific effect upon interstate commerce' if in the aggregate the economic activity in question would represent 'a general practice ... subject to federal control.'" (*Id*. at 56-57; *see also Allied-Bruce Terminix Companies, Inc. v. Dobson* (1995) 513 U.S. 265, 282 ["In addition to the multistate nature of Terminix and Allied–Bruce, the termite-treating and house-repairing material used by Allied–Bruce in its (allegedly inadequate) efforts to carry out the terms of the Plan, came from outside Alabama."].) The FAA has also applied in cases where "the construction of plaintiff's house involved the receipt and use of building materials that were manufactured and/or produced outside California," and "the number of building materials shown by defendants to have come from interstate commerce indicates this case is not one involving a merely 'trivial' impact on interstate commerce, which would be outside the limits of Congress' power." (*Shepard v. Edward Mackay Enters., Inc.* (2007) 148 Cal. App. 4th 1092, 1101.) Here, Defendants have demonstrated that Plaintiff's work regularly involves the use of products purchased by Defendants from out-of-state suppliers which cross state lines, and ultimately are provided by Defendants to Plaintiff. Aluma's President states: Aluma is involved in interstate commerce. While its primary service locations are in California, it engages in activities that cross state lines. Aluma provides cosmetic injectables and other products to its network of injectors. These supplies and products are manufactured and distributed out of state and cross state lines

		before reaching Aluma and its independent contractors. By way of example, AbbVie is one of Aluma's suppliers of Botox and Juvederm. AbbVie is a Delaware corporation with its business office located in Chicago, Illinois. . . . Aluma purchases Botox and Juvederm from AbbVie, which is located in Illinois, and is then shipped across state lines to Aluma in California. Part of the services Aluma provided to its Independent Contractors like Bruyn was procuring Botox and Juvederm once its Independent Contractors determined they needed it. (Lafkas Dec. ¶ 3 [emphasis added].) Defendants also provide the declaration of an Associate Director of AbbVie, Inc. who confirms that JUVEDERM products were "shipped to Aluma Medical were shipped into California from a different U.S. state." (Collins Dec. ¶ 3.) Lafkas provided "a compilation of invoices from AbbVie reflecting Aluma's purchase of Botox and Juvederm product that was purchased by Aluma via a credit card transaction (initiated in California and remitted to Illinois) and which was shipped from Chicago, Illinois, to California." (Lafkas Dec., Ex. G [two invoices].) Lafkas further clarified that the Juvederm products discussed by the AbbVie, Inc. representative are used for the services provided by Plaintiff pursuant to Section 4(A) of the Independent Contractor Agreement. (Supp. Lafkas Dec. ¶ 4.) Lafkas provides records showing that "the Juvederm Volbella product Plaintiff used was from Batch ID 1000603125 with Expiration Date March 14, 2025. This matches one of the lots of the Juvederm Products reflected in Exhibit G to the Collins Declaration. Aluma's business records, thus, corroborate Plaintiff's use of the Juvederm Products." (Supp. Lafkas Dec. ¶ 5, Ex. I [patient report].) Lafkas states that: "Plaintiff herself personally selected and then ordered these Juvederm Products." (*Id*. ¶ 6.) While Plaintiff asserts that her work was solely intrastate, the court finds that, as plaintiff was injecting drugs that moved in interstate commerce into the bodies of her clients, Defendants have provided sufficient evidence to demonstrate that her work involves interstate commerce. As Labor Code Section 229 is preempted by the FAA, pursuant to the parties' Agreement, Plaintiff's claims for due and unpaid wages must be compelled to arbitration along with Plaintiff's other claims. (Cal. Lab. Code § 229 ["Actions to enforce the provisions of this article for the collection of due and unpaid wages claimed by an individual may be maintained without

		regard to the existence of any private agreement to arbitrate."]; *Garrido v. Air Liquide Indus. U.S. LP* (2015) 241 Cal. App. 4th 833, 844–45 ["The FAA preempts Labor Code section 229, requiring enforcement of an arbitration agreement covering [actions for the collection of due and unpaid wages]."].) Both the Federal Arbitration Act and California law provide for a stay of proceedings pending arbitration. (9 U.S.C. §3; CCP §1281.4.) As such, the court stays the action pending completion of arbitration. The court sets an ADR review hearing for April 8, 2027 at 9:00 a.m. Defendants are ordered to give notice of this ruling.
11	30-2025-01513896 Vaughn vs. American Woodmark Corporation, a Virginia corporation	**Off Calendar**
12	30-2022-01240591 Boucher vs. Unstoppable Automotive Group, LLC	**<u>MOTION 1: Plaintiff's Motion to Compel Further Responses to RFP, Set One, from UA POC</u>** Plaintiff Louis Baird Boucher's ("Plaintiff") Motion to Compel Further Responses to Requests for Production of Documents ("RFP"), Set One from Defendant Unstoppable Automotive POC, LLC ("UA POC") is **GRANTED IN PART** as to RFP Nos. 1-6 and **DENIED WITHOUT PREJUDICE IN PART** as to RFP Nos. 7-9. IT IS ORDERED THAT within thirty (30) days of this ruling, UA POC shall provide to Plaintiff complete, code-compliant further responses to Plaintiff's RFP Nos. 1-6 (as modified in the ruling below), provide a privilege log to Plaintiff for any documents withheld on the basis of privilege, and produce all non-privileged, responsive documents to Plaintiff. The court OVERRULES UA POC's objections to Plaintiffs' counsel, Hali M. Anderson's declaration. The subject discovery concerns Plaintiff's wage and hour law violation claims underlying the single PAGA cause of action asserted against Defendants in this action. Plaintiff seeks documents related to his own employment records, and all documents related to UA POC's compensation plans, employee handbooks and HR manuals, timekeeping, compensation and